Montgomery County District Court

Cause No. 2024-CV-0050

Brandon Allen, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Brandon Allen

Date:	July 12, 2024
Location:	Offices of Watson & Hines LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Jacob Holmes, Watson & Hines LLP

Q: Please state your full name for the record.

A: I'd rather not give my name on this recording, so just call me the plaintiff.

Q: Understood. Where were you on the day of the collision?

A: I was driving north on a two-lane road in Conroe, Texas, heading home from the grocery store.

Q: What happened next?

A: A vehicle coming the other way drifted across the center line. I braked and steered right, but we still made contact. It was a head-on collision, though honestly it didn't feel like a high-speed impact. We both had maybe a few miles an hour left when we touched.

Q: Did your airbags deploy?

A: No, they didn't. My car jolted forward and back, and my head snapped a bit. That's what I remember most.

Q: Did you feel pain right away?

A: Not immediately. I felt a little stiff in the neck and a dull ache in my lower back within an hour or so. By that evening it was harder to turn my head to check mirrors.

Q: Did you seek medical care?

A: Yes, I went to an urgent care clinic that same week. They diagnosed a neck strain and a lumbar strain and gave me muscle relaxers and a referral to physical therapy.

Q: Have you attended physical therapy?

A: I went about twice a week for several weeks. The exercises help some days more than others. I still do the home stretches they showed me.

Q: How has this affected your daily life?

A: I used to coach my nephew's soccer team on weekends, and I had to hand that off to my brother for a while. Lifting groceries is uncomfortable, and I've been sleeping in a recliner some nights because lying flat hurts my back.

Q: Are you working currently?

A: Yes, I'm back at my desk job. I take short breaks to stand up and stretch, and my supervisor has been accommodating about that.

Q: Do you have any prior neck or back complaints?

A: Nothing serious. I had a stiff neck now and then from sitting at a computer, but nothing that needed a doctor.